

HOUSE BILL 13

By Cepicky

AN ACT to amend Tennessee Code Annotated, Title 49,
relative to communication devices at schools.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 2, Part 1, is amended by
adding the following as a new section:

(a) As used in this section, "wireless communication device":

(1) Means a portable wireless device that has the capability to provide
voice, messaging, or other data communication between two (2) or more parties,
including, but not limited to:

- (A) Cellular telephones;
- (B) Tablet computers;
- (C) Laptop computers; and
- (D) Gaming devices; and

(2) Does not include a portable wireless device that has the capability to
provide voice, messaging, or other data communication between two (2) or more
parties, if such capability is restricted by software.

(b) Each local board of education and each public charter school governing body
shall adopt and implement a wireless communication device policy that:

(1) Except as provided in subdivisions (b)(2)-(4), prohibits a student from
using a wireless communication device during instructional time;

(2) Authorizes a teacher to allow a student to use a wireless
communication device for educational purposes during instructional time;

(3) Permits a student to use a wireless communication device in the event of an emergency or to manage the student's health; and

(4) Permits a student to use a wireless communication device during instructional time if the student's use of the wireless communication device is included in the student's:

(A) Individualized education program under the Individuals with Disabilities Education Act (20 U.S.C. § 1400 et seq.); or

(B) Active 504 plan developed under Section 504 of the Rehabilitation Act of 1973 (29 U.S.C. § 794).

(c) Each LEA and public charter school shall publish the wireless communication device policy established pursuant to subsection (b) on its website.

SECTION 2. Tennessee Code Annotated, Section 49-6-4002, is amended by deleting subsection (h) and substituting:

(h) A discipline policy or code of conduct adopted by a local board of education or public charter school governing body may authorize a teacher to withhold a student's wireless communication device from the student for the duration of the instructional time if the student is noncompliant with the LEA's or public charter school's wireless communication device policy adopted pursuant to Section 1. As used in this subsection (h), "wireless communication device" has the same meaning as defined in Section 1.

SECTION 3. This act takes effect July 1, 2025, the public welfare requiring it, and applies to the 2025-2026 school year and each school year thereafter.